



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner
Subject: UDC-22-00365-01 | Hill Heights Addition, 2nd Filing – Preliminary Plat
Date: February 13, 2023

Background:

The item for consideration is a *Preliminary Plat*. This is approved by Acknowledgement.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 2/13/2023
- Public Services Committee 2/22/2023
- Final consideration 2/27/2023

Planning Commission Recommendation:

The Planning Commission heard this item at their February 6, 2022 meeting and approved the Preliminary Plat by a vote of 6-0, subject to Staff's recommended exceptions and conditions, and with the caveat the project contain only 8 buildable lots (the applicant proposed changing to 10 buildable lots at the meeting, but that was not what was presented to Staff, the Planning Commission, or the public at the time of the Planning Commission mailing).

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Planning Commission Staff Report



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CITY OF CHEYENNE PLANNING COMMISSION
FEBRUARY 6, 2023
STAFF REPORT

FILE: UDC-22-00365-01: Hill Heights Addition, 2nd Filing Preliminary Plat

REQUEST: A Preliminary Plat of 0.4 acres proposing creating 8 residential lots, with one common lot

LOCATION: West of Van Buren Avenue, north of Dell Range Boulevard

APPLICANT: Brandon Swain

AGENT: Brandon Swain

OWNER: 1105 Ashford LLC

ZONING: County AR Agricultural Residential (NR-3 proposed)

PURPOSE: To allow cottage lot development

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the Hill Heights Addition, 2nd Filing Preliminary Plat, subject to staff conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC Article 3 Impact Studies
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

The applicant is requesting approval of a preliminary plat for 0.4 acres of land to create a cottage lot residential development. The County Assessor presently shows the land as one ownership parcel. The land is developed with one rural-residential home.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Residential	County AR Agricultural Residential	Rural residential
North	Urban Residential	MR Medium-density Residential	Duplex and townhome residential
South	Urban Residential	County AR	Rural residential
East	Urban Residential	County AR	Rural residential
West	Urban Residential	County AR, MR	Rural residential, duplex residential

The property is currently zoned as County AR Agricultural Residential, but is proposed to be zoned NR-3 Neighborhood Residential – High Density. The NR-3 zone encourages higher-density development in a more walkable neighborhood.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the preliminary plat, the Commission must make the following findings required in UDC 2.1.2.d a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

On the future land use map found in PlanCheyenne, the subject land has been designated as Urban Residential. Surrounding areas are also designated Urban Residential. The Urban Residential designation encourages a mix of residential development, and the proposed plat is consistent with this expectation.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

Foundation 7 of PlanCheyenne support the use of existing infrastructure and timely provision of services (including emergency and education services). This development is largely surrounded by existing infrastructure.

The application **complies** with this review criterion.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat is largely surrounded by existing developments. The land to the north and west is developed with townhome and duplex style development. The area immediately south and east are developed with a more rural residential development pattern. Civic uses are to the south across Dell Range. There are constraints that prevent this plat from making any significant additions to the street network.

The application **complies** with this review criterion.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Transportation Network:

This plat is proposed in an area with a developed network, and there are limited options for the project to make any meaningful connections. The existing block is roughly 3,000 linear feet, which is 800 feet larger than the requirement.

Community Facilities and Fees:

The property is not significant in size or scope and there are existing community facilities in the area. Staff would not recommend dedicating or reserving land for public parks, schools, fire stations, or other similar facilities.

Park Fees are due with this plat. For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. The required fees for the .4 acres are as follows:

Land Acquisition Fee	\$140 (\$350 per acre)
Infrastructure Fee	\$140 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$280.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Residential Enhancement Fee \$400 per dwelling unit

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Public Safety Fees are also due with this development, but these fees are due with building permit. The fee is \$836.88 in 2021 dollars and adjusted annually.

Open Space:

This plat is exempt from being required to provide open space at the plat level. However, the development proposal is cottage lots which requires a shared open space with a site plan. The plat proposes a common lot to satisfy the open space requirement.

Required Improvements:

This proposed subdivision is in an area with existing infrastructure, and limited additions are needed. The applicant should clarify if any utilities are proposed to be extended (information on utilities is typically provided with a preliminary plat and was not with this application).

The application **complies** with this review criterion, with conditions.

- 4) Any phasing proposed in the application is clearly indicated and demonstrates a logical and well planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

No phasing is proposed with this plat.

The application **complies** with this review criterion.

- 5) The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

The applicant submitted a drainage worksheet and a traffic worksheet. No other studies were provided with the Preliminary Plat application.

Drainage:

The review of the drainage worksheet submitted with the preliminary plat generally found the need for more significant drainage analysis to be done with the project.

Traffic:

The traffic worksheet submitted with the application was deemed acceptable for this level of review.

The application **complies** with this review criterion, with conditions.

- 6) Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The proposed development pattern is cottage lots, which allows units to be 50% of the lot required lot size in the UDC, so long as the missing area is made up in the common open space. The proposed lots are a little short of the required minimum for townhomes, and there is some concern the lots might not meet the required side setback when development occurs. The lots

should be modified accordingly, but the common lot is large enough these changes could be accommodated.

The application **complies** with this review criterion, with conditions.

7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)

The common lot is labeled as “shared” on the plat map, which likely means common ownership is proposed; however, this will be required to be better defined with the final plat.

The application **complies** with this review criterion, with conditions.

8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)

Surrounding properties are largely already developed, which include rural residential properties which have the potential to redevelop with more urban patterns. Nearby development includes duplexes and townhomes, although at a lower density than this project proposes. Less than quarter miles away properties are redeveloping with apartments. This plat is an infill project in an area with a variety of residential development types.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

Staff is satisfied that the proposed plat is not harmful to the public, health, safety, or general welfare.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder are not proposed with this Preliminary Plat.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Lack of defined common lot ownership.
2. Technical corrections.
3. Lot dimensional standards (size, setbacks).
4. Lack of a utility proposal.
5. Drainage requirements.

CONCLUSION:

This application meets review criteria with some clarifications and corrections. An exception will need to be granted due to the constraints of previous development.

ALTERNATIVES:

1. Recommend approval of the preliminary plat as submitted by the applicant.
2. Recommend approval of the preliminary plat subject to staff's recommended conditions (**Staff Recommendation**).
3. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the plat does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the preliminary plat until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

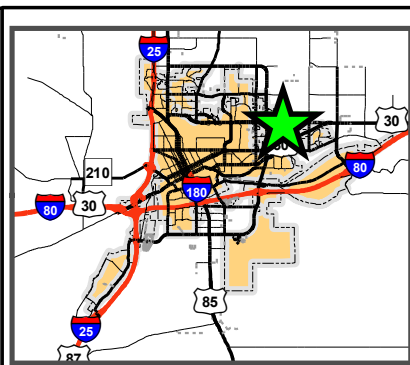
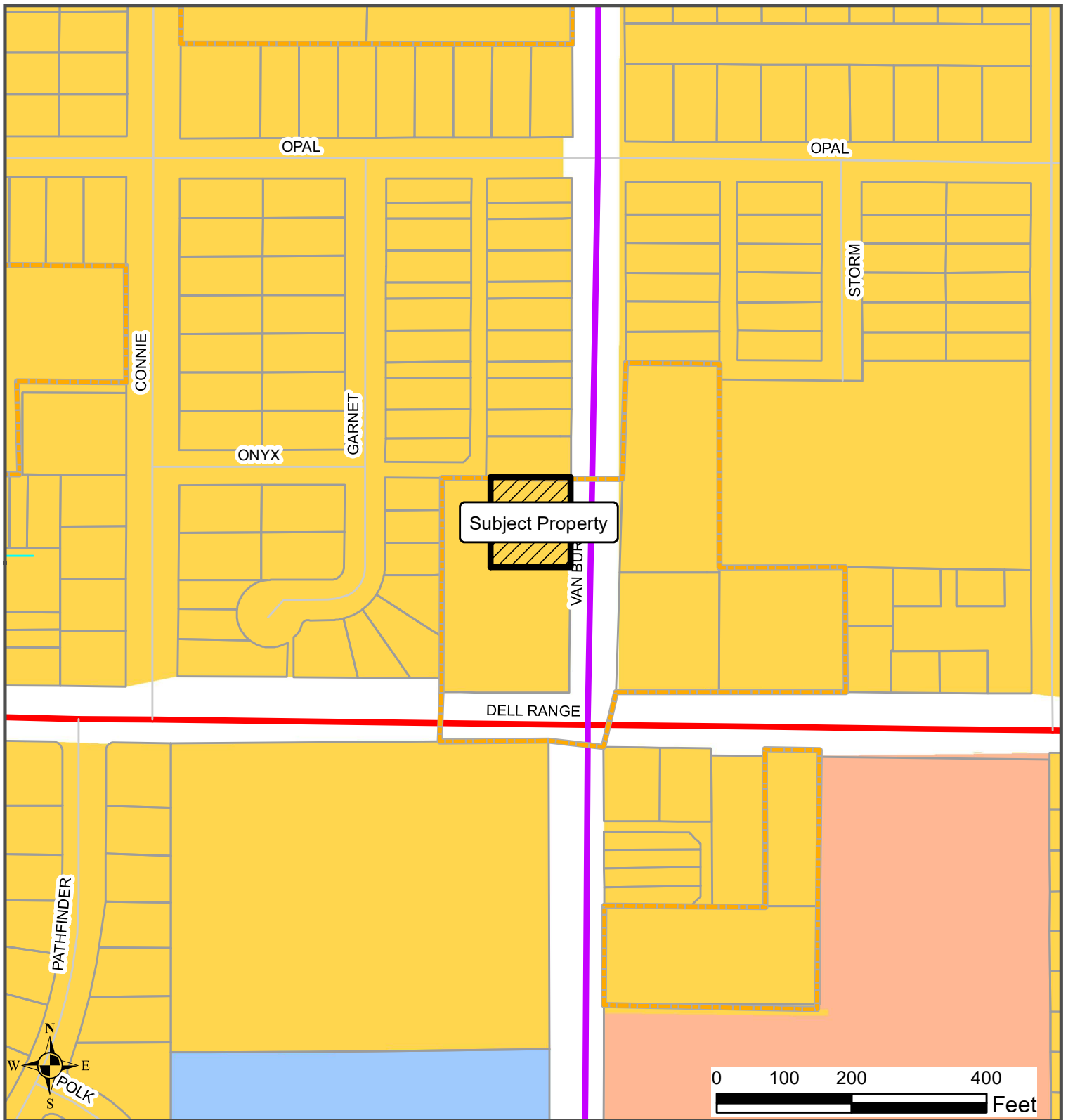
STAFF RECOMMENDATION:

Staff recommends approval of this application, with the following exceptions and conditions:

1. The following exceptions to are granted:
 - a. Exception to UDC 4.3.3.c, regarding minimum block size and connectivity.
2. Concurrent with final plat submittal:
 - a. Submit a drainage study addressing drainage concerns for this development.
 - b. Demonstrate correct utility provision.
3. Correct the plat as follows:
 - a. Increase the size of the townhome lots to meet minimum size requirements.
 - b. Remove the notary for City and have the Mayor and Clerk sign the plat.
 - c. Specify ownership for the common lot.

ATTACHMENTS:

1. Current Zoning Map
2. Future Land Use Map
3. Submitted Master Application Form
4. Applicant-submitted Preliminary Plat

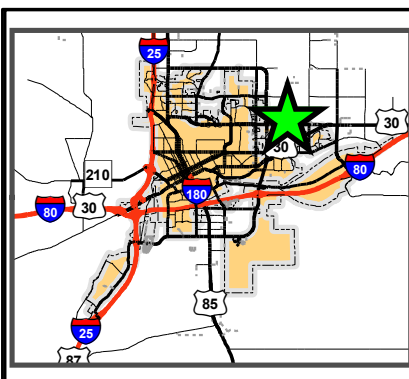
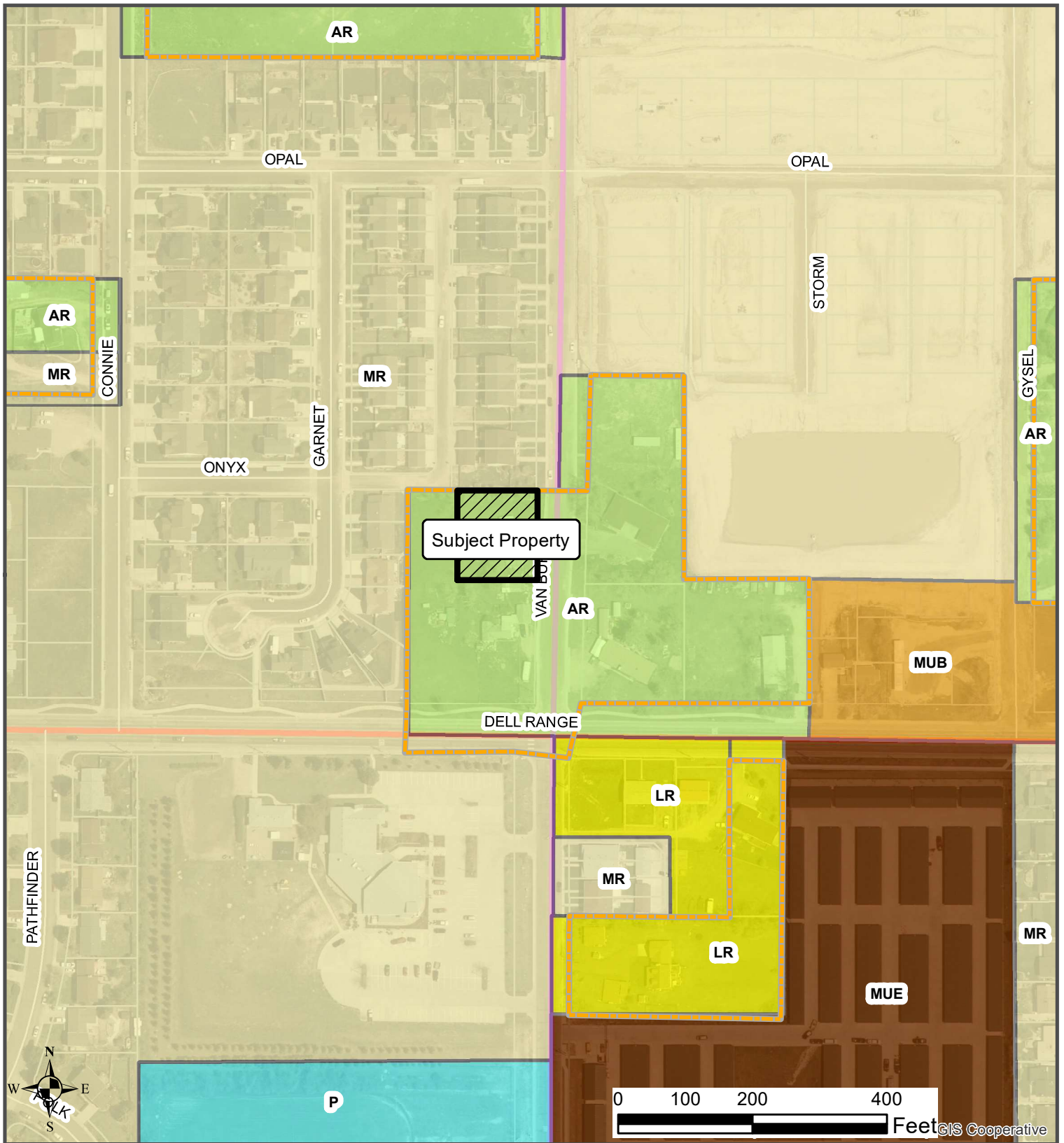


Attachment 2: Land Use Map UDC-22-00365

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Platted not built		
Private		
Ownership		



Attachment 1: Zoning Map UDC-22-00365

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Legend

- | | |
|--|--|
| <ul style="list-style-type: none"> Nov19_CityLimits Interstate Principal Arterial Minor Arterial Major Collector Minor Collector Local Private Platted not built HR / High Density Residential MR / Medium Density Residential LR / Low Density Residential NR-2 / Neighborhood Residential - Med. Density NR-3 / Neighborhood Residential - High Density AR / Agricultural Residential | <ul style="list-style-type: none"> A-1 / Agricultural and Rural Residential A-2 / Agricultural AG / City Agricultural MUR / Mixed Use Residential Emphasis CBD / Central Business District CB / Community Business NB / Neighborhood Business MU / Mixed Use - County MUB / Mixed Use Business Emphasis MUE / Mixed Use Employment Emphasis HI / Heavy Industrial LI / Light Industrial P / Public AD / Airport District PUD / Planned Unit Development X / Exempt |
|--|--|

Planning and Development: Plat - Preliminary

Submission date: **28 September 2022, 9:20PM**

Receipt number: **8**

Related form version: **12**

General Information

Applicant Name: **Brandon Swain**

Applicant Address: **2802 Deming Blvd**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82001**

Applicant Phone: **307-214-9634**

Applicant Email: **Bswainy23@gmail.com**

Representative Name: **Brandon Swain**

Representative Address: **2802 Deming Blvd**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82001**

Representative Phone: **307-214-9634**

Representative Email: **Bswainy23@gmail.com**

Owner Name: **Brandon Swain**

Owner Address: **2802 Deming Blvd**

Owner City: **Cheyenne**

Owner State:	WY
Owner Zip Code:	82001
Owner Phone:	307-214-9634
Owner Email:	Bswainy23@gmail.com
Who is the primary contact regarding this application?	Owner
Letter of Authorization	loavb.pdf
Project Location (Street Address or General Location):	4612 Van Buren
Assessor's Parcel ID number(s)	14662330200800
Total Project Area	15682
Existing Zoning	AR - Agricultural Residential

Application-Specific Information

Written Statement	The project will consist of two clusters of 4-attached townhomes. The dwellings will front common open space and access served by way of common driveway and rear load garages.
Current Subdivision	Hill Heights Addition
Lots affected by this proposal	8
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	06/15/2022
Upload any pre-application meeting notes or summaries relevant to this proposal.	4612 VanBurenMeetingSummary.pdf
Are any easements proposed to be added, modified, or removed?	Yes
If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.	

Open Space Approach

Each dwelling will front approximately 400 sq ft of common open space. This exceeds the calculation requirement as it relates to dwelling lot size

Drainage Worksheet / Study

[drainage vb.pdf](#)

Transportation Worksheet / Study

[transportation WS VB.pdf](#)

Transportation Network Plan

Preliminary Plat Drawing

[22276 TRACT 36 HILL HEIGHTS REPLAT PAPER \(1\).pdf](#)

Signature / Certification

Applicant Signature

Name of signatory: Brandon Swain

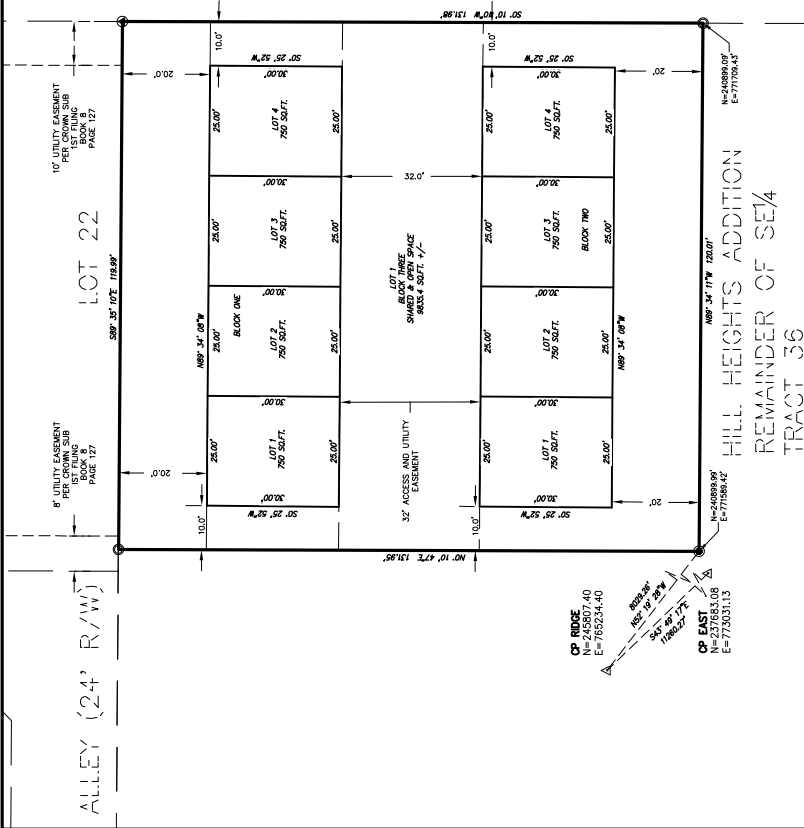
A handwritten signature in black ink, appearing to read 'Brandon Swain', with a stylized, looping flourish.

[Link to signature](#)

Please enter an email address for an email receipt.

Bswainy23@gmail.com

VAN BUREN AVE (80' R/W)



VACATION STATEMENT

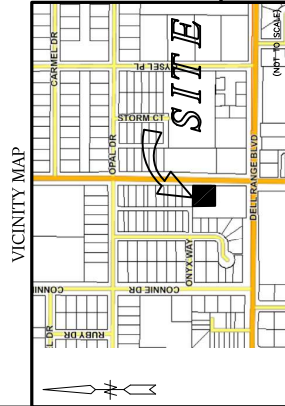
IT IS THE INTENT OF THIS REPLAT TO VACATE THE NORTH 132 FEET OF THE EAST 120 FEET OF THE SE $\frac{1}{4}$ OF TRACT 36, IN HILL HEIGHTS ADDITION, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING. EXISTING EASEMENTS TO REMAIN.

LEGEND

- SET $\frac{3}{8}$ " X 24" LONG REBAR WITH $1\frac{1}{2}$ " ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND $1\frac{1}{2}$ " ALUMINUM CAP STAMPED P.L.S. 5910
- FOUND $1\frac{1}{2}$ " ALUMINUM CAP STAMPED P.L.S. 2500
- FOUND NAIL

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, a Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey by one or more duly licensed and qualified persons, and that this map correctly states the results of said survey and that the monuments found or set are as shown.



FILING RECORD

DEDICATION

Know all persons by these presents that: 1105 ASHFORD LLC, a Wyoming limited liability company, owner in fee simple of the North 132 feet of the East 120 feet of the East 190 feet of the SE $\frac{1}{4}$ of Tract 36, in Hill Heights Addition, a subdivision of part of the South Half of Section 23, Township 14 North, Range 66 West of the 6th P.M., in Laramie County, Wyoming.

Has caused the same to be Surveyed, Vacated, and Replatted to be known as, Hill Heights Addition, 2nd Filing, and does hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires.

by: Brandon Swain, President for 1105 ASHFORD LLC, a Wyoming limited liability company.

ACKNOWLEDGEMENT

STATE OF _____ } SS
COUNTY OF _____ }

The foregoing instrument was acknowledged before me this ____ day of _____ 2022,
by Brandon Swain, President for 1105 ASHFORD LLC, a Wyoming limited liability company.

Notary Public,

My Commission Expires: _____

Approved by Charles Bloom, Development Director this
____ day of _____, 2022.

Charles Bloom, Development Director, City of Cheyenne, WY

APPROVAL

Approved by Thomas Cobb, P.E., City of Cheyenne Engineer
this ____ day of _____, 2022.

Thomas Cobb, P.E., City Engineer, City of Cheyenne, WY

CITY ACKNOWLEDGEMENT

STATE OF WYOMING }
COUNTY OF LARAMIE }

The foregoing instrument was acknowledged before me this
____ day of _____, 2022, by Charles Bloom, City
of Cheyenne Planning & Development Director and
Thomas Cobb, P.E., City Engineer for the City of
Cheyenne.

County, Wyoming

Notary Public, Laramie

My Commission Expires: _____



HILL HEIGHTS ADDITION 2ND FILING

THE NORTH 132 FEET OF THE EAST
120 FEET OF THE EAST 190 FEET OF
THE SE $\frac{1}{4}$ OF TRACT 36, IN HILL
HEIGHTS ADDITION,
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING

PREPARED SEPTEMBER, 2022



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
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756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 828-8759
www.SteelSurvey.com • info@SteelSurvey.com

REVISD: 9/28/2022
22276 TRACT 36 HILL HEIGHTS REPLAT.DWG